

26TRCV00961 26TRCV00961

County: los-angeles

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Case Number: 26TRCV00961 Hearing Date: September 15, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – September 15, 2026

Calendar No.

PROCEEDINGS

Melchor

Venegas v. City of Gardena, et al.

26TRCV00961

1. State of California's Demurrer to Complaint

2.

City of Gardena's

Demurrer to Complaint

TENTATIVE RULING

State of California's Demurrer to Complaint is sustained
with 20 days leave to amend, in part, and overruled, in part.

City of Gardena's Demurrer to Complaint is sustained with 20 days leave to amend, in part, and overruled, in part.

Background

Plaintiff filed the Complaint on March 16, 2026. Plaintiff alleges the following facts. Plaintiff was injured when he stepped into an exposed and uncovered manhole. Plaintiff alleges the following causes of action: 1. General Negligence; 2. Premises Liability.

Meet and Confer

Defendant State of California filed a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl., Leeann E. Whitmore, ¶¶ 2-7).

Defendant City of Gardena filed a meet and confer declaration in sufficient compliance with CCP § 430.41. (Decl., Louis R. Dumont, ¶¶ 6-7).

Request for Judicial Notice

Defendant City of Gardena's request for judicial notice is granted pursuant to Evidence Code 452(d) and (h). The Court only takes judicial notice of the existence of the Complaint and the geographical location.

Demurrer

A demurrer tests the sufficiency of a complaint as a matter of law and raises only questions of law. (Schmidt v. Foundation Health (1995) 35 Cal.App.4th 1702, 1706.) In testing the sufficiency of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider contentions, deductions, or conclusions of fact or law. (Moore v. Conliffe (1994) 7 Cal.App.4th 634, 638.) Because a demurrer tests the legal sufficiency of a complaint, the plaintiff must show

that the complaint alleges facts sufficient to establish every element of each cause of action. (Rakestraw v. California Physicians Service (2000) 81 Cal.App.4th 39, 43.) Where the complaint fails to state facts sufficient to constitute a cause of action, courts should sustain the demurrer. (C.C.P., § 430.10(e); Zelig v. County of Los Angeles (2002) 27 Cal.App.4th 1112, 1126.)

Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643-644.) "Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer." (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 609–610.) Under Code Civil Procedure § 430.10(f), a demurrer may also be sustained if a complaint is "uncertain." Uncertainty exists where a complaint's factual allegations are so confusing they do not sufficiently apprise a defendant of the issues it is being asked to meet. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.)

Defendant State of California and Defendant City of Gardena demur to the first and second causes of action of the Complaint on the grounds that the causes of action fail to state facts sufficient to constitute a cause of action and are uncertain. CCP § 430.10(e)(f).

As to the State of California's demurrer based on uncertainty, the arguments are not persuasive. The State of California argues that the demurrer must be sustained because Plaintiff named the party as simply the "State of California" rather than naming the Defendant by the specific state agency. "[W]hen a plaintiff names the State as a defendant in a suit alleging wrongdoing by one of its agencies, it ordinarily will respond to the complaint in the name of the State of California, "by and through" the allegedly responsible agency. This practice is consistent with the understanding that, in the context of government litigation, courts must sometimes "look behind names that symbolize the parties" to determine the real parties in interest." McLean v. State of California (2016) 1 Cal.5th 615, 629, fn. 8. Naming the Defendant as the State of California does not render the Complaint so uncertain that it renders the State of California unable to respond.

As to the City of Gardena's demurrer, Plaintiff argues that the demurrer must be overruled as it was untimely filed. However, the Court exercises its discretion to hear the demurrer as there has been no prejudice to any party. In *Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750, the Court of Appeal held that the trial court was well within its discretion to consider an untimely demurrer when it does not affect the substantial rights of any party. "The trial court's consideration of the demurrer, filed 38 days after plaintiff served the complaint, did not affect plaintiff's "substantial rights," where plaintiff did not take steps to obtain a default judgment or demonstrate the delay prejudiced her. (McAllister, supra, 147 Cal.App.4th at p. 282, 54 Cal.Rptr.3d 116; see also § 475 [requiring the court to "disregard any error ... or defect, in the pleadings" that does not affect the substantial rights of the parties].) Therefore, we conclude the lower court acted within its broad discretion by considering defendant's demurrer, notwithstanding plaintiff's claim that it was untimely."

First Cause of Action for General Negligence

Defendants' demurrers are sustained with 20 days leave to amend. Plaintiff fails to state sufficient to state a cause of action.

"[U]nder the Tort Claims Act all governmental tort liability is based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Thus, to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity." *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795 (internal quotation omitted).

Plaintiff has failed to plead a statutory basis for liability against the Defendants within the first cause of action. The only statutes that were mentioned by Plaintiff were set forth as an attachment to the second cause of action. As noted above, "general negligence," without a statutory basis, is not a proper cause of action against a public entity.

Thus, the demurrers to the first cause of action are sustained with 20 days leave to amend.

Second

Cause of Action for Premises Liability

Defendants'

demurrers are overruled. Plaintiff states sufficient facts to state a cause of action and the cause of action is not uncertain.

"[U]nder

the Tort Claims Act all governmental tort liability is based on statute, the general rule that statutory causes of action must be pleaded with particularity is applicable. Thus, to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity." *Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795 (internal quotation omitted).

Gov.

Code, § 835 states:

"Except as provided

by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and that either:

(a) A negligent or

wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or

(b) The public entity

had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition."

The following jury

instruction is instructive.

CACI 1100 states:

"[Name of plaintiff]

claims that [he/she/nonbinary pronoun] was harmed by a dangerous condition of [name of defendant]'s property. To establish this claim, [name of plaintiff] must prove all of the following:

1. That [name of defendant] owned [or controlled] the property;

2. That the property was in a dangerous condition at the time of the injury;

3. That the dangerous condition created a reasonably foreseeable risk of the kind of injury that occurred;

4. [That negligent or wrongful conduct of [name of defendant]'s employee acting within the scope of employment created the dangerous condition;]

[or]

[That [name of defendant] had notice of the dangerous condition for a long enough time to have protected against it;]

5. That [name of plaintiff] was harmed; and

6. That the dangerous condition was a substantial factor in causing [name of plaintiff]'s harm."

Defendants argue that

Plaintiff has failed to allege the required particularized facts to state a statutory basis for liability against Defendants. Plaintiff has adequately stated facts to state a cause of action for Dangerous Condition of Public Property pursuant to Gov. Code § 835. Plaintiff has alleged that Defendants own, maintain, manage, or operate the public property - the premises at or near 15700 S Main St., Gardena, CA 90248. (Complaint, p. 8-9). Plaintiff alleges facts that the property was in a dangerous condition at the time because of an

exposed and uncovered manhole. (Id. at p. 9). Plaintiff alleges that the dangerous condition created a risk of harm. (Id.). Plaintiff alleges that Defendant's employees created the dangerous condition and/or had actual and constructive notice of the dangerous condition. (Complaint, p. 8-9). Plaintiff alleges that he was harmed, and that Defendant was a substantial factor in causing the harm. (Id.)

While it is true that

Plaintiff appears to intermingle numerous theories of liability by also referencing "general negligence," and also Gov. Code § 815.2, the cause of action is not so uncertain that Defendants are not able to adequately respond to the allegations. In addition, the Court cannot sustain the demurrers based on both Defendants' attempts to argue factual issues. Specifically, the City of Gardena argues that it does not own, control, or maintain the location of the incident and provided documents to which it requested judicial notice which it argues shows the location of the incident. Defendant then argues that the incident occurred outside areas that it owns or controls. The Court merely notes that the Complaint states that the location of the incident was "at or near" 15700 S Main St., Gardena, CA 90248. The specific location of the incident and whether any of the Defendants own, control, maintain, manage, or operate the property are factual issues that are not appropriate for resolution with this demurrer.

Thus, Defendants' demurrers to the second cause of action are overruled.

Plaintiff is ordered to give notice of this ruling.